

Jammu and Kashmir Professional Engineering Colleges (Selection and Admission) Rules, 2016

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State of Jammu-Kashmir - Act

Jammu and Kashmir Professional Engineering Colleges (Selection and Admission) Rules, 2016

JAMMU & KASHMIR

India

Jammu and Kashmir Professional Engineering Colleges (Selection and Admission) Rules, 2016

Rule

JAMMU-AND-KASHMIR-PROFESSIONAL-ENGINEERING-COLLEGES-SELECTION-AND-ADMISSION-RULES-2016 of 2016

Published on 14 December 2016

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Jammu and Kashmir Professional Engineering Colleges (Selection and Admission) Rules, 2016

Published vide Notification No. SRO-396, Jammu, dated 14th December, 2016

SRO-396. - Whereas, the Supreme Court in J.P. Jaikrishanan and others v. State of Andhra Pradesh and others reported in AIR, 1993 laid down a scheme for regulating admission to the Professional Colleges including Engineering Colleges/Polytechnic Institutions imparting Degree/Diploma and other courses established and/or run by private institutions ; and

Whereas, the Court further directed the State Governments to impose and implement the scheme for regulating

admission to such institutions ; and

Whereas, pursuant to the aforesaid directions, the Government decided to frame rules and guidelines for implementing the aforesaid scheme and SRO-51 dated 30-01-1997 was notified by Department of Technical Education for regulating admission to the Professional Colleges including Engineering Colleges/Polytechnic Institutions imparting Degree/Diploma and other courses established and/or run by private institutions ;

Whereas, Professional Engineering Colleges imparting instructions in various disciplines leading to the award of Bachelor's and other degrees fall under the administrative control of Higher Education Department ;

Whereas, the scheme of Lateral Entry to the 3rd Semester of Bachelor's Degree Courses in the Professional Engineering has also been introduced by most of the Universities in the State ;

Now, therefore, the Government in the Higher Education Department makes following rules to regulate the admissions to the Professional Engineering Colleges in the State imparting instruction in various Engineering Courses :-

1.

Short title and commencement.

(1)

These rules shall be called the Jammu and Kashmir Professional Engineering Colleges (Selection and Admission) Rules, 2016.

(2)

These rules shall come into force from the date of their publication in the Government Gazette.

2.

Definitions.

- In these rules unless the context otherwise requires,-

a. "Advertisement Notice" means the notification issued by the Competent Authority, inviting applications from the eligible candidates for permission to appear in the "Common Entrance Examination" ;

b. "Application Form" means the form prescribed by the Competent Authority to be submitted by the eligible candidates for permission to appear in the Common Entrance Examination ;

c. "Available Seats" means,-

i. the seats as per the branch-wise intake capacity sanctioned by the Government and All India Council for Technical Education in each Technical Education Institution against which admissions in 1st Semester are to be made and shall include both free and payment seats ;

ii. 10% of the intake capacity supernumerary to the approved intake sanctioned by the Government and All India Council for Technical Education against which admission in 3rd Semester under Lateral Entry Scheme are to be made.

d. "Competent Authority" means,-

i. the authority constituted by the Government for the purpose of conducting Common Entrance Examination and making selections for admission to various Technical/Professional courses in 1st Semester ;

ii. the authority constituted by the Government for purpose of conducting Common Entrance Examination and making selections for admission to various Technical/Professional courses in 3rd Semester under Lateral Entry Scheme.

e. "Free Seats" means the seats on which the fees payable is same as prescribed for the Government Institution in the concerned State and not less than 50% of the available seats in a technical professional course offered by a private technical education institution ;

f. "Government" means the Government of Jammu and Kashmir ;

g. "Government Engineering College" means a College established and managed by the Government offering Engineering Courses ;

h. "Information Brochure" means a brochure issued to the candidates along with the application form containing detailed information regarding the colleges offering the courses, number of seats available in each colleges, the pattern of Common Entrance Examination and the mode of selection besides the conditions of eligibility and other relevant information ;

i. "Merit List" means the list of candidates who appeared in the Common Entrance Examination drawn up in the descending order of their inter-se merit ;

j. "NRI Seats" means the quota of seats out of the payment seats to the extent as provided under rule 5 available for selection of Non-Resident Indians/Foreign Students on merit by management of the private technical education institution ;

k. "Payment Seats" means the available seats excluding the free seats in a professional course offered by a Private Engineering College ;

l. "TFW" means Tuition Fee Wavier Scheme shall be applicable to all approved Engineering Colleges offering Bachelor Programme and Lateral Entry provisions of these programmes ;

m. "Private Engineering College" means the Colleges established and/or administered by registered Societies, Public Trusts and Religious or Charitable Trusts offering engineering courses ;

n. "Engineering Courses" means the courses as prescribed from time to time by the Government and shall initially include the following :-

i. Bachelor's Degree in Engineering Courses ;

ii. Master's Degree in Engineering Courses ;

iii. Doctoral Degree in Engineering Courses ;

iv. Post Doctoral Course in Engineering.

o. "State" means the State of Jammu and Kashmir ;

p. "Lateral Entry Scheme" means admission in 3rd Semester of a Degree in appropriate branch of Engineering/Technology.

3.

Application.

- Rules and Procedure,-

(1)

The applications for admission to all the available seats in the engineering courses offered by the Government/Private Engineering Colleges in the State shall be called for by the Competent Authority.

(2)

No Private Engineering College offering the courses covered by these Rules shall call for applications separately, individually or collectively.

(3)

The application form prescribed by the Competent Authority, Entrance Examinations shall contain a column or a separate sheet wherein the applicant shall indicate whether he/she wishes to be admitted against a payment seat and also the order of his/her preference for Government Engineering College or Private Engineering Colleges or between the Private Institutions as the case may be.

(4)

The condition of eligibility for appearing in the Common Entrance Examination as prescribed by the Government from time to time for the Government/Private Colleges offering the courses covered by these rules shall apply mutatis mutandis to admission in the Government/Private Engineering Colleges under these rules.

(5)

The management of a Private Engineering College shall not impose or prescribe any further eligibility criteria or condition of admission against free or payment seats.

(6)

The Competent Authority Entrance Examination shall arrange to Publish Notification inviting applications in at least two leading dailies of the State (One English and one Vernacular).

4.

Conduct of common entrance examination and selection for admission.

(1)

The Competent Authority, shall conduct a Common Entrance Examination for selection against the available seats in Government Engineering College as well as Private Engineering Colleges on the pattern and in the manner prescribed by the said Authority.

(2)

The Competent Authority shall prepare a common merit list on the basis of inter-se merit of the candidates in the Common Entrance Examination in the descending order.

(3)

The selection of the candidates for admission to Engineering Courses against free seats in Private Engineering Colleges shall be made strictly on the basis of their merit in the Common Entrance

Examination. - The selection of the candidates against payment seats shall be based on the merit in accordance with the choice preferred by the candidate.

(4)

The Course and College allocation shall be made as far as possible in accordance with the descending order of the preferences given by the candidate in his/her application form depending upon the availability of seats as per inter-se merit.

(5)

The Course and College allocation once made by the Competent Authority shall be final. The Private Engineering Colleges shall be bound to admit the students so allocated by the Competent Authority.

(6)

The selection list so prepared shall be published in at least two leading local dailies of Srinagar and Jammu and it shall also be displayed at the office of Competent Authority in Jammu and Srinagar.

(7)

The Competent Authority shall also prepare and publish a waiting list of the candidates indicating the marks obtained by them in the Common Entrance Examination. The said list shall be followed for filling of casual/drop-out vacancies from the select list as reported to them by the concerned Principals of Colleges. Such vacancies shall be filled in the descending order of their merit until such date as may be prescribed by the Competent Authority :

Provided that all the selected candidates must possess the minimum marks prescribed for entrance test conducted by the Competent Authority.

5.

Selection of candidates against NRI seats.

- The Management of Private Engineering Colleges shall be entitled to make admissions of Non-Resident Indian/Foreign Students up to 5% of the sanctioned intake capacity of the college for each academic session within the overall ceiling of 50% payment quota seats on the basis of merit to be adjusted by the management of the institutions having regard to relevant factors. In case no NRI candidate is available the same shall be filled in accordance with sub-rules (3) and (7) of the Rule 4.

6.

Eligibility conditions for the lateral entry.

(1)

Candidate desirous to seek admission under Lateral Entry must have passed Diploma Examination from an AICTE approved Institution; with at least 50% marks (40% in case of candidates belonging to reserved category) in appropriate branch of Engineering/Technology.

(2)

Passed B. Sc. final examination from a recognized University as defined by UGC, with at least 50% marks (40% in case of candidates belonging to reserved category) and passed XII standard with mathematics as a subject :

Provided that, students belonging to B. Sc. Stream, shall clear the subjects of Engineering Graphics/Engineering Drawing and Engineering Mechanics of the first year Engineering Program along with the second year subjects :

Provided further that, the students belonging to B. Sc. Stream shall be considered only after filling the supernumerary seats in this category with students belonging to the Diploma Stream.

7.

Structure of fee payable.

(1)

The structure of fee for various Degree Engineering Courses in Government Colleges as well as Private Engineering Colleges for free seats shall be prescribed by the Government from time to time.

(2)

Under Tuition Fee Waiver Scheme, the seats up to maximum 5% of sanctioned intake per course shall be available for Government Private Engineering Colleges. These seats shall be supernumerary in nature and will be available to such courses in the institution where a minimum of 30% of sanctioned seats in the respective courses are filled up.

(3)

The fee for the payment seats in Private Engineering Colleges shall be fixed by the Committee constituted by the Government/All India Council for Technical Education from time to time. The said Committee shall fix the fee once every

three years or at such longer intervals as it may think appropriate.

(4)

The fee chargeable for payment seats shall be divided into the number of semesters of study in each course and payable accordingly.

8.

Reservations.

- While making selections either by free seats or by payments seats, reservation shall be made in accordance with the rules and orders issued from time to time for members of Scheduled Castes/Scheduled Tribes/Backward Classes or any other category or class of permanent residents of State under the provisions of Jammu and Kashmir Reservation Act, 2004 and the Reservation Rules in force.

9.

Repeal and Saving.

(1)

The Jammu and Kashmir Private Technical Institutions (Selection and Admission) Rules, 1997 and all other orders issued in this behalf are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said rules shall be deemed to have been done or taken under these rules.

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